



CHAPTER 3.

An Act to confirm and give effect to an agreement made between the Treasury and the Ministry of Finance for Northern Ireland with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of social insurance and allied services.

[19th December 1946.]

WHEREAS provision was made by the Unemployment ^{26 Geo. 5 &} (Northern Ireland Agreement) Act, 1936, for confirming ^{1 Edw. 8. c. 10.} and giving effect to an agreement (hereinafter referred to as the agreement of 1935) made between the Treasury and the Ministry of Finance for Northern Ireland with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of unemployment :

And whereas the Treasury and the said Ministry have made the agreement set forth in the Schedule to this Act, which supersedes the agreement of 1935 and makes provision (pending the conclusion of a further agreement for extending its operation to other social insurance and allied services) for assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of unemployment insurance, unemployment assistance and family allowances :

And whereas it is provided by the said agreement that it shall not come into operation until confirmed by Acts of the Parliaments of the United Kingdom and Northern Ireland respectively, but upon being so confirmed shall apply as from the first day of April, nineteen hundred and forty-six :

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 Allowances (Northern Ireland Agreement) Act, 1946.

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Confirmation
of scheduled
agreement.

1.—(1) The agreement set forth in the Schedule to this Act is hereby confirmed.

(2) Any sums payable under the said agreement from the Exchequer of the United Kingdom to the Exchequer of Northern Ireland shall be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

Short title,
repeal, com-
mencement
and duration.

2.—(1) This Act may be cited as the Unemployment and Family Allowances (Northern Ireland Agreement) Act, 1946.

(2) The Unemployment (Northern Ireland Agreement) Act, 1936, is hereby repealed.

(3) This Act shall not come into operation unless and until His Majesty by Order in Council declares that a corresponding Act has been passed by the Parliament of Northern Ireland, and shall cease to be in force if and when His Majesty by Order in Council declares that the corresponding Act of the Parliament of Northern Ireland has ceased to be in force.

SCHEDULE.

Section 1.

AGREEMENT MADE BETWEEN THE TREASURY AND THE MINISTRY OF FINANCE FOR NORTHERN IRELAND.

The Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of social insurance and allied services, have entered into the following Agreement which supersedes as from the first day of April, one thousand nine hundred and forty-six, the Agreement relating to unemployment of the twenty-ninth July, one thousand nine hundred and thirty-five.

1. There shall be ascertained the payment (if any) necessary to be made as at the end of each financial year as between the Exchequer of Northern Ireland and the Unemployment Fund of Northern Ireland in order to maintain the balance of the current account of that Fund at 2.2 per cent. of the total of the balances of the Unemployment Fund of Great Britain and the Unemployment Fund of Northern Ireland.

2.—(1) There shall be ascertained in respect of each financial year during which this Agreement is in operation the total net Exchequer cost in Great Britain and in Northern Ireland of unemployment insurance, unemployment assistance and family allowances.

(2) (a) The net Exchequer cost in respect of unemployment insurance and unemployment assistance shall be the actual cost of those services as certified annually by the Commissioners of His Majesty's Treasury as respects the services in Great Britain and by the Ministry of Finance for Northern Ireland as respects the services in Northern Ireland ;

(b) The net Exchequer cost in respect of family allowances shall be the actual cost of this service as certified annually by the Ministry of Finance for Northern Ireland as respects the service in Northern Ireland and as respects the service in Great Britain the sums certified by the Ministry of National Insurance as representing the amounts that would have been charged to this service in Great Britain if the minimum school-leaving age in Great Britain had been the same as the minimum school-leaving age in Northern Ireland ;

(c) The net Exchequer cost in respect of unemployment insurance, unemployment assistance, and family allowances in Northern Ireland shall, in relation to the net Exchequer cost of these services in Great Britain for the purposes of this Agreement be determined subject to such adjustments, if any, as may be necessary to take account from time to time of any other variations in methods of administration, as between Great Britain and Northern Ireland.

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3. (a) If in respect of any financial year the total net Exchequer cost in Northern Ireland (after taking into account any payment made for the purpose referred to in Article 1 hereof) is less than 2·2 per cent. of the total net Exchequer cost in Great Britain and Northern Ireland there shall be paid from the Exchequer of Northern Ireland to the Exchequer of the United Kingdom 80 per cent. of such difference ;
- (b) If in respect of any financial year the total net Exchequer cost in Northern Ireland (after taking into account any payment made for the purpose referred to in Article 1 hereof) exceeds 2·2 per cent. of the total net Exchequer cost in Great Britain and Northern Ireland there shall be paid to the Exchequer of Northern Ireland from the Exchequer of the United Kingdom 80 per cent. of such difference.
4. It is hereby agreed that subject to such discrepancies as may exist between the scheme for family allowances in Great Britain and the corresponding scheme in Northern Ireland owing to variations in the dates on which the minimum school-leaving age will be raised from fourteen years to fifteen years in Great Britain and Northern Ireland respectively, and subject to such other variations from time to time as may exist in the methods of administration between Great Britain and Northern Ireland of the services covered by this Agreement, the Government of Northern Ireland undertakes to maintain the rates of contributions and of benefits in respect of unemployment insurance, unemployment assistance and family allowances in parity with the rates of contributions and benefits obtaining in Great Britain.
5. Payments on account of such contributions as may ultimately be found to be due under Article 3 hereof from one Exchequer to the other may be made of such amounts and at such times as may be agreed between the Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland.
6. Any question arising under this Agreement, whether as to the amount of any payment for the purpose of Article 1 hereof, or of any adjustments necessary in the determination of net Exchequer costs in Great Britain and Northern Ireland respectively for the purposes of Article 2 hereof, or of any contribution from one Exchequer to the other under Article 3 hereof or otherwise shall, in default of agreement between the Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland, be determined by the Joint Exchequer Board whose decision shall be final.
- 7.—(1) This Agreement shall not come into operation until confirmed by Acts of the Parliaments of the United Kingdom and Northern Ireland respectively but upon being so confirmed shall apply as from the first day of April, one thousand nine hundred and forty-six.
- (2) This Agreement shall remain in operation until superseded by a further Agreement between the Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland who shall consult together as to the extension of this Agreement to comprehend so far as is found to be practicable in the then existing conditions the services covered by the Family Allowances Act, 1945, the National

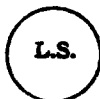
Insurance Act, 1946, the National Insurance (Industrial Injuries) Act, 1946, and the Bill at present before the Parliament of the United Kingdom and known as the National Health Service Bill.

IN WITNESS whereof Hugh Dalton, and Joseph Henderson, two of the Commissioners of His Majesty's Treasury have hereunto set their hands and seals and the Official Seal of the Ministry of Finance for Northern Ireland has been hereunto affixed this eighteenth day of September one thousand nine hundred and forty-six.

SIGNED, SEALED and DELIVERED }
by Hugh Dalton, one of the Commis- } HUGH DALTON.
sioners of His Majesty's Treasury, in }
the presence of P. C. Shaw, Civil }
Servant. H.M. Treasury, S.W.1. }



SIGNED, SEALED and DELIVERED }
by Joseph Henderson, one of the Com- } JOSEPH HENDERSON.
missioners of His Majesty's Treasury, }
in the presence of E. G. Compton, }
Civil Servant. H.M. Treasury, S.W.1. }



THE OFFICIAL SEAL OF THE }
MINISTRY OF FINANCE FOR }
NORTHERN IRELAND was here- } J. M. SINCLAIR.
unto affixed in the presence of }
W. D. Scott, Civil Servant, Ministry }
of Finance, Belfast. }

